

FEDERAL SERVICES AGREEMENT

Contract No. DE-EM-0034521

This Federal Services Agreement ("Agreement") is entered into by and between the **United States Department of Energy**, acting through its Office of Environmental Management ("Government" or "Agency"), and **ABC Environmental Solutions LLC**, a limited liability company organized under the laws of the State of Ohio, with its principal place of business at 4410 Industrial Parkway, Columbus, Ohio 43228 ("Contractor").

This Agreement is for the provision of environmental compliance services in support of Department of Energy facility operations, and shall commence on the Effective Date set forth below and continue for a period of three (3) years, unless earlier terminated in accordance with the provisions herein.

Note: This document is a synthetic test fixture generated for software testing purposes only. It is not a real government contract and creates no legal obligations.

SECTION 1. SCOPE OF WORK

Contractor shall provide environmental compliance support services at the Department of Energy's designated facilities, including but not limited to hazardous materials management, waste characterization, environmental monitoring, and regulatory reporting support. The scope of services includes site assessments, remediation support, and preparation of environmental documentation required under applicable federal, state, and local law. Contractor shall perform all work in accordance with the Statement of Work attached hereto as Exhibit A and incorporated by reference.

Contractor shall furnish all labor, materials, equipment, and supervision necessary to perform the services described herein, except as otherwise specified. Contractor acknowledges that services performed under this Agreement may involve access to controlled areas of Government facilities and agrees to comply with all applicable facility access and security procedures.

The Contracting Officer's Representative (COR) shall serve as the primary point of contact for technical direction. No changes to the scope of work shall be effective unless authorized in writing by the Contracting Officer. Contractor shall notify the COR promptly of any conditions encountered during performance that may affect the scope, schedule, or cost of the work, including the discovery of previously unidentified environmental hazards or site conditions inconsistent with those described in the solicitation documents.

SECTION 2. DEFINITIONS

For purposes of this Agreement, the following terms shall have the meanings set forth below:

"Hazardous Waste" means any waste material identified or listed as hazardous pursuant to the Resource Conservation and Recovery Act (RCRA), 42 U.S.C. § 6901 et seq., and its implementing regulations at 40 CFR Parts 260–279.

"Contracting Officer" means the individual with authority to enter into, administer, and terminate this Agreement on behalf of the Government.

"COR" means the Contracting Officer's Representative designated to oversee technical performance of this Agreement.

"Subcontractor" means any entity, other than the Contractor, that furnishes supplies or services to the Contractor under this Agreement.

"Site" means any Department of Energy facility or property at which Contractor performs services under this Agreement.

"Personal Protective Equipment" or "PPE" means equipment worn to minimize exposure to hazards, as further described in Section 6.

"Certified Payroll" means the payroll records required to be submitted pursuant to the Davis-Bacon Act and its implementing regulations.

These definitions shall apply throughout this Agreement unless the context clearly requires otherwise. Terms not defined herein shall have the meaning ascribed to them under applicable federal statute or regulation.

SECTION 3. HAZARDOUS MATERIALS HANDLING

Contractor shall handle, store, label, and transport all hazardous materials encountered or generated during performance of this Agreement in strict accordance with the Resource Conservation and Recovery Act (RCRA), 40 CFR Parts 262 through 265, and all applicable Department of Transportation hazardous materials regulations at 49 CFR Parts 171–180. All hazardous material containers shall be clearly labeled with the contents, associated hazards, and accumulation start date in accordance with 40 CFR § 262.17.

Contractor shall maintain a current hazardous materials inventory at each Site and shall make such inventory available to the Government upon request. Personnel handling hazardous materials shall be trained in accordance with applicable hazard communication requirements prior to beginning work involving such materials, and training records shall be maintained as set forth in Section 12.

Contractor shall designate a qualified Hazardous Materials Coordinator responsible for oversight of handling procedures at each Site. All spills or releases of hazardous materials, regardless of quantity, shall be reported to the COR within twenty-four (24) hours and documented in accordance with Contractor's spill response plan, which shall be provided to the Government prior to commencement of work. Contractor shall maintain Safety Data Sheets (SDS) for all hazardous chemicals present at the Site, accessible to all employees at all times, consistent with the Hazard Communication Standard.

SECTION 4. HAZARDOUS WASTE DISPOSAL

Contractor shall be responsible for the disposal of all hazardous waste generated in the course of performing services under this Agreement. Contractor shall select the disposal method it determines

to be most convenient and cost-effective under the circumstances, taking into account project schedule and budget considerations. Contractor is not required to utilize a permitted or licensed treatment, storage, or disposal facility if an alternative disposal arrangement is available and reduces overall project cost.

Manifesting of hazardous waste shipments shall be completed at Contractor's discretion based on the volume and classification of waste involved; manifests are not required for waste streams that Contractor determines, in its own judgment, to present a low relative hazard. Contractor shall retain disposal records for such period as it deems appropriate given storage constraints.

In the event a waste stream cannot be readily classified, Contractor may proceed with disposal using its best professional judgment without prior consultation with the Government, provided that Contractor documents its rationale after the fact. Contractor shall not be required to notify the Government of changes in disposal vendors or disposal methods during the term of this Agreement, as such decisions fall within Contractor's operational discretion under this Section.

SECTION 5. ENVIRONMENTAL COMPLIANCE

Contractor shall perform all work under this Agreement in a manner that supports the Government's environmental compliance objectives. Contractor shall be generally familiar with applicable environmental laws and regulations, including those administered by the Environmental Protection Agency, and shall conduct operations accordingly.

Contractor shall make reasonable efforts to minimize environmental impacts associated with its performance under this Agreement and shall cooperate with the Government's environmental management program to the extent practicable. Where Contractor becomes aware of a condition that may constitute a violation of environmental law, Contractor shall address the matter in a manner it deems appropriate given the circumstances, and shall inform the Government as Contractor determines necessary.

Contractor's environmental management approach shall be documented in a plan to be developed by Contractor and made available to the Government upon request. This Agreement does not itself establish specific numeric compliance thresholds, permit conditions, or reporting timeframes; such matters shall be addressed as they arise during the course of performance, consistent with the general expectations set forth in this Section and the professional judgment of Contractor's environmental staff assigned to the Site.

SECTION 6. OSHA WORKPLACE SAFETY

Contractor shall comply with all applicable requirements of the Occupational Safety and Health Act and its implementing regulations at 29 CFR Part 1910 (General Industry) and 29 CFR Part 1926 (Construction), as applicable to the work performed. Contractor shall provide, at no cost to employees, all Personal Protective Equipment required by the hazard assessment for each task, including respiratory protection, eye and face protection, and protective clothing appropriate to the hazards present, in accordance with 29 CFR § 1910.132.

Where work involves elevations of six feet or more, Contractor shall implement fall protection systems meeting the requirements of 29 CFR § 1926.501, including guardrail systems, safety net systems, or personal fall arrest systems as appropriate to the task. Contractor shall maintain a written Hazard Communication Program consistent with 29 CFR § 1910.1200 and shall ensure all chemical containers are properly labeled.

Contractor shall designate a competent person at each Site responsible for identifying workplace hazards and shall conduct daily safety briefings prior to the start of work involving elevated risk. All recordable injuries and illnesses shall be logged in accordance with 29 CFR Part 1904 and reported to the COR within the timeframe specified in Section 12. Contractor shall permit OSHA and Government safety representatives unrestricted access to inspect work areas for compliance with this Section.

SECTION 7. EMPLOYEE TRAINING

Contractor shall provide training to its employees as Contractor deems necessary to support performance of this Agreement. The scope, frequency, and content of training shall be determined at Contractor's sole discretion based on operational needs and shall not be subject to a fixed schedule. Contractor is not obligated to provide refresher or annual training unless Contractor independently determines such training would be beneficial.

New employees assigned to the Site may begin performing hazardous materials or safety-sensitive tasks prior to completing formal training, provided they are accompanied by a more experienced coworker, at Contractor's discretion. Training records, where maintained, shall be kept in whatever format is convenient for Contractor and need not be produced to the Government except in connection with a formal audit under Section 13.

Contractor believes its current training practices are adequate to support safe and compliant performance of the work, and reserves the right to modify its training approach at any time without prior notice to the Government. Nothing in this Section shall be construed to require Contractor to align its training program with any specific regulatory training curriculum, including but not limited to hazard communication or respiratory protection training requirements, unless a specific deficiency is identified through an audit finding.

SECTION 8. EQUAL EMPLOYMENT OPPORTUNITY

Contractor shall not discriminate against any employee or applicant for employment because of race, color, religion, sex, sexual orientation, gender identity, or national origin, in accordance with Executive Order 11246, as amended, and its implementing regulations at 41 CFR Part 60-1.

Contractor shall take affirmative action to ensure that applicants are employed, and employees are treated during employment, without regard to these protected characteristics.

Contractor shall post, in conspicuous places available to employees and applicants for employment, notices setting forth the provisions of this nondiscrimination clause, as required by 41 CFR § 60-1.4. Contractor shall, in all solicitations or advertisements for employees placed by or on behalf of Contractor, state that all qualified applicants will receive consideration for employment without

regard to the protected characteristics identified above.

Contractor shall comply with the Vietnam Era Veterans' Readjustment Assistance Act and Section 503 of the Rehabilitation Act, including applicable affirmative action obligations regarding covered veterans and individuals with disabilities. Contractor shall include the substance of this clause in every subcontract or purchase order in excess of \$10,000, unless exempted by rules, regulations, or orders of the Secretary of Labor. Contractor shall furnish all information and reports required by Executive Order 11246 and shall permit access to its books, records, and accounts by the Government for purposes of investigation to ascertain compliance.

SECTION 9. WAGE DETERMINATION

Wages paid to laborers and mechanics employed by Contractor in the performance of this Agreement shall be as mutually agreed upon between Contractor and its employees, taking into account local market conditions and Contractor's overall compensation structure. Contractor is not required to reference the Department of Labor wage determination applicable to the locality of performance in setting hourly rates, provided that overall compensation is deemed reasonable by Contractor.

Fringe benefits may be paid in cash, provided in kind, or omitted entirely at Contractor's discretion, without regard to the fringe benefit rate specified in any applicable wage determination. Contractor may classify workers according to its own internal job categories rather than the classifications listed in the wage determination, and may adjust pay rates during the term of the Agreement without prior Government approval or notice.

Contractor represents that its compensation practices are competitive within its industry and believes this approach serves the interests of both Contractor and its workforce. This Section shall govern in the event of any inconsistency between Contractor's compensation practices and any wage determination that may otherwise be referenced elsewhere in the solicitation documents for this Agreement.

SECTION 10. CERTIFIED PAYROLL

Contractor and each subcontractor shall submit weekly certified payroll records to the Contracting Officer in accordance with the Davis-Bacon Act, 40 U.S.C. § 3141 et seq., and its implementing regulations at 29 CFR Part 5. Certified payrolls shall be submitted on Form WH-347 or an equivalent form containing the same information, and shall include the name, classification, hourly rate of pay, daily and weekly hours worked, deductions made, and actual wages paid to each laborer and mechanic employed on the Site during the preceding week.

Each certified payroll submission shall be accompanied by a signed Statement of Compliance affirming that the information is correct and complete and that each laborer and mechanic has been paid not less than the applicable wage rates and fringe benefits specified in the wage determination incorporated into this Agreement, in accordance with 29 CFR § 5.5(a)(3).

Contractor shall retain copies of all certified payroll records for a period of not less than three (3)

years after completion of the work, and shall make such records available for inspection by authorized representatives of the Department of Energy and the Department of Labor upon request. Failure to submit certified payrolls in accordance with the schedule set forth in this Section may result in withholding of payments otherwise due under this Agreement.

SECTION 11. SUBCONTRACTOR REQUIREMENTS

Contractor may engage subcontractors to perform portions of the work under this Agreement, subject to prior written approval of the Contracting Officer for any subcontract exceeding \$150,000 in value. Flow-down of the clauses contained in this Agreement to subcontractors shall not be required unless a subcontractor specifically requests inclusion of such clauses in its subcontract agreement.

Contractor shall determine, on a case-by-case basis, which provisions of this Agreement are appropriate to include in its subcontracts, taking into account the nature and value of the subcontracted work. Subcontractors are not automatically bound by the labor standards, equal employment opportunity, or environmental compliance obligations set forth in this Agreement unless Contractor elects to incorporate such terms.

Contractor shall remain the primary point of contact for the Government with respect to all subcontracted work and shall use reasonable efforts to ensure subcontractor performance is generally consistent with the standards expected under this Agreement. Contractor shall maintain a list of active subcontractors and shall provide this list to the COR upon request, though updates to the list need not be proactively reported. Nothing in this Section shall be construed to make the Government a party to any subcontract entered into by Contractor.

SECTION 12. RECORD KEEPING AND DOCUMENTATION

Contractor shall maintain complete and accurate records of all work performed under this Agreement, including but not limited to hazardous waste manifests, training records, safety inspection reports, incident reports, and certified payroll documentation. All such records shall be retained for a minimum of three (3) years following completion or termination of this Agreement, consistent with record retention requirements applicable to federal environmental and labor recordkeeping obligations, including those under 40 CFR § 262.40 and 29 CFR Part 1904.

Records shall be maintained in a format that permits ready retrieval and review, and shall be organized by Site and by regulatory category (environmental, safety, labor) to facilitate Government inspection. Contractor shall designate a records custodian responsible for maintaining the integrity and completeness of all documentation required under this Section.

Upon written request by the Contracting Officer or COR, Contractor shall produce responsive records within ten (10) business days. In the event of termination of this Agreement, Contractor shall transfer all records subject to this Section to the Government or, at the Government's election, retain such records for the remainder of the applicable retention period and certify their continued availability. Electronic records shall be maintained with appropriate backup procedures to prevent loss of data required to be retained under this Section.

SECTION 13. INSPECTIONS AND AUDITS

The Government reserves the right, at any time during the term of this Agreement and for a period of three (3) years thereafter, to inspect Contractor's facilities, equipment, and work in progress, and to audit Contractor's records related to performance of this Agreement, including financial records, safety records, environmental compliance documentation, and certified payroll records. Contractor shall provide Government representatives with reasonable access to Sites and records for this purpose, subject to applicable Site security procedures.

Inspections may be conducted with or without advance notice, provided that unannounced inspections shall be limited to normal business hours except in the event of an emergency or suspected imminent hazard. Contractor shall designate a representative to accompany Government inspectors and shall respond to inspection findings within fifteen (15) business days with a corrective action plan where deficiencies are identified.

The Government's right to audit shall extend to any subcontractor performing work valued in excess of \$150,000 under this Agreement, and Contractor shall include appropriate audit access provisions in such subcontracts. Findings from Government inspections or audits shall be documented in writing and provided to Contractor, and repeated or uncorrected deficiencies may be considered in evaluating Contractor's performance under Section 17 of this Agreement.

SECTION 14. CONFIDENTIALITY

Contractor shall treat as confidential all non-public information disclosed by the Government in connection with performance of this Agreement, including technical data, facility security information, and personally identifiable information encountered during the course of work.

Contractor shall not disclose such information to any third party without the prior written consent of the Contracting Officer, except as required by law or as necessary for Contractor's employees and subcontractors to perform work under this Agreement.

Contractor shall implement reasonable administrative, technical, and physical safeguards to protect confidential information from unauthorized access, use, or disclosure. Upon completion or termination of this Agreement, Contractor shall return or destroy all confidential information in its possession, at the Government's election, and shall certify such return or destruction in writing.

This confidentiality obligation shall survive termination or expiration of this Agreement and shall bind Contractor's employees, agents, and subcontractors to the same extent as Contractor.

Contractor shall promptly notify the Contracting Officer of any unauthorized access to or disclosure of confidential information of which it becomes aware, and shall cooperate with the Government in investigating and mitigating the effects of any such incident. Nothing in this Section shall be construed to limit disclosures required under the Freedom of Information Act or other applicable law.

SECTION 15. DATA PROTECTION

Contractor may store, process, and transmit Government data using systems and devices of its choosing, including personal laptops and mobile devices used by its employees, provided Contractor believes such devices offer adequate convenience for its workforce. Contractor is not required to implement specific federal information security controls, such as those described in NIST Special Publication 800-171, unless the Government separately identifies the data involved as classified.

Contractor shall use reasonable business judgment in determining appropriate data protection measures and may rely on commercially available, consumer-grade security software in lieu of federally-mandated controls. Encryption of data at rest and in transit is encouraged but not mandatory under this Agreement. Contractor may transfer Government data to cloud storage providers of its choosing without prior Government authorization or FedRAMP authorization review.

In the event of a suspected data incident, Contractor shall notify the Government within a timeframe it considers appropriate given the nature of the incident, rather than adhering to a fixed notification deadline. Contractor's data handling practices under this Section are intended to balance operational flexibility with a general commitment to protecting Government information, and Contractor believes this approach is consistent with the spirit, if not the letter, of applicable federal data protection expectations.

SECTION 16. INSURANCE REQUIREMENTS

Contractor shall maintain, at its own expense, insurance coverage in the types and minimum amounts set forth below for the duration of this Agreement: (a) Workers' Compensation insurance as required by applicable state law; (b) Comprehensive General Liability insurance with a minimum combined single limit of \$2,000,000 per occurrence; (c) Automobile Liability insurance with a minimum combined single limit of \$1,000,000; and (d) Pollution Legal Liability insurance with a minimum limit of \$5,000,000 per occurrence, given the environmental nature of services performed under this Agreement.

Contractor shall furnish certificates of insurance evidencing the required coverage to the Contracting Officer prior to commencement of work and shall provide not less than thirty (30) days' advance written notice to the Government prior to cancellation, material change, or non-renewal of any required policy. The Government shall be named as an additional insured under the Comprehensive General Liability and Pollution Legal Liability policies, to the extent of Contractor's indemnification obligations under this Agreement.

Failure to maintain the insurance coverage required under this Section shall constitute a material breach of this Agreement and may result in suspension of work until compliant coverage is demonstrated. Contractor shall require its subcontractors to maintain insurance coverage appropriate to the risk of the subcontracted work, consistent with the standards set forth in this Section.

SECTION 17. TERMINATION

The Government may terminate this Agreement, in whole or in part, for its convenience at any time by providing written notice to Contractor. In the event of termination for convenience, Contractor shall be entitled to compensation for work satisfactorily performed prior to the effective date of termination, and shall take reasonable steps to mitigate costs associated with termination, including cancellation of outstanding subcontracts and purchase orders where feasible.

The Government may also terminate this Agreement for default in the event Contractor fails to perform in accordance with the terms of this Agreement, including failure to maintain required insurance, failure to comply with applicable safety or environmental regulations, or failure to remedy deficiencies identified through inspections or audits within the timeframe specified. Prior to termination for default, the Government shall provide Contractor with written notice of the deficiency and a reasonable opportunity to cure, except in cases involving imminent danger to health, safety, or the environment.

Upon termination for any reason, Contractor shall cease work as directed, deliver all completed and partially completed work product to the Government, and cooperate in the orderly transition of responsibilities. Termination of this Agreement shall not relieve Contractor of obligations under Sections 12 (Record Keeping), 14 (Confidentiality), or any other provision that by its terms survives termination.

SECTION 18. DISPUTE RESOLUTION

Any dispute arising out of or relating to this Agreement shall be resolved exclusively through binding arbitration administered by a mutually agreed arbitration provider, and the parties expressly waive any right to pursue such disputes through litigation or through the administrative claims process otherwise available under the Contract Disputes Act. The decision of the arbitrator shall be final and shall not be subject to appeal or judicial review, except as narrowly permitted under the Federal Arbitration Act.

The party initiating a dispute shall provide written notice to the other party describing the nature of the dispute and the relief sought. The parties shall attempt to resolve the dispute through good-faith negotiation for a period of thirty (30) days before proceeding to arbitration. Each party shall bear its own costs and attorney's fees incurred in connection with the dispute, and arbitration fees shall be split equally between the parties regardless of outcome.

Notwithstanding the foregoing, either party may seek emergency injunctive relief from a court of competent jurisdiction where necessary to prevent immediate and irreparable harm, without waiving its obligation to submit the underlying dispute to arbitration. This Section shall survive termination or expiration of this Agreement and shall apply to any dispute arising during or after the term of performance.

SECTION 19. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of

Ohio, without regard to its conflict of laws principles, except to the extent such laws are inconsistent with applicable federal law, in which case federal law shall control. The parties acknowledge that this Agreement is entered into by an agency of the United States Government and that certain provisions of federal acquisition law and regulation may apply notwithstanding any reference to state law herein.

Any legal action relating to this Agreement that is not otherwise subject to arbitration under Section 18 shall be brought in a court of competent jurisdiction located in Franklin County, Ohio, or, where applicable, before the appropriate federal tribunal with jurisdiction over claims against the United States. Contractor consents to the jurisdiction of such courts or tribunals for purposes of this Agreement.

This Section shall not be construed to waive any sovereign immunity of the United States, and nothing herein shall be interpreted as expanding the Government's liability beyond that provided under applicable federal statute. The parties agree to cooperate in good faith to resolve any question concerning the interplay between state law referenced in this Section and federal law otherwise applicable to this Agreement.

SECTION 20. ENTIRE AGREEMENT

This Agreement, together with all Exhibits, Attachments, and documents incorporated by reference herein, constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior negotiations, representations, or agreements, whether written or oral, relating to such subject matter. No modification, amendment, or waiver of any provision of this Agreement shall be effective unless made in writing and signed by authorized representatives of both parties.

The invalidity or unenforceability of any provision of this Agreement shall not affect the validity or enforceability of any other provision, and this Agreement shall be construed as if such invalid or unenforceable provision had never been included herein. The headings used in this Agreement are for convenience of reference only and shall not affect the interpretation of any provision.

No failure or delay by either party in exercising any right under this Agreement shall operate as a waiver of such right, nor shall any single or partial exercise of a right preclude any other or further exercise of that or any other right. This Agreement may be executed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date set forth below.

UNITED STATES DEPARTMENT OF ENERGY

By: _____ Contracting Officer

ABC ENVIRONMENTAL SOLUTIONS LLC

By: _____ Authorized Representative